have been answered, that the magistrates tell them the act does not extend to bridewells.[1]

In consequence of this, at the quarter sessions you see prisoners covered (hardly covered) with rags; almost famished; and sick of diseases, which the discharged spread where they go; and with which those who are sent to the county gaols infect these prisons.

The same complaint, want of food, is to be found in many county gaols. In above half these, debtors have no bread; although it is granted to the highwayman, the house-breaker, and the murderer: and medical assistance, which is provided for the latter, is withheld from the former. In many of these gaols, debtors who would work are not permitted to have any tools, lest they should furnish felons with them for escape or other mischief. I have often seen these prisoners eating their water-soup (bread boiled in mere water) and heard them say, "We are locked up and almost starved to death."

As to the relief provided for debtors by the benevolent act, thirty-second of George II (commonly called the Lords Act, because it originated in their house) I did not find in all England and Wales (except the counties of Middlesex and Surrey) twelve debtors who had obtained from their creditors the fourpence a day, to which they had a right by that act. The means of procuring it were out of their reach. In one of my journeys I found near six hundred prisoners, whose debts were under twenty pounds each: some of them did not owe above three or four pounds: and the expense of suing for the aliment is in many places equal to the small debts; for which some of these prisoners had been confined several months.

At Carlisle but one debtor of the forty-nine whom I saw there in 1774, had obtained his groats[2]: and the gaoler told me, that during the time he had held that office, which was fourteen years, no more than four or five had received it; and that they were soon discharged by their creditors neglecting to pay it. Not one debtor had the aliment in York Castle, Devon, Cheshire, Kent, and many other counties. The truth is, some debtors are the most pitiable objects in our gaols.

To their wanting necessary food, I must add not only the demands of gaolers, etc. for fees; but also the extortion of

[1] If the late act does not include bridewells, it is required, by an act seventh James I, Cap. iv that "the masters and governors of . . . houses of correction shall have some fit allowance . . . for the relieving of such as shall happen to be weak and sick in their custody."

[2] The popular name for the debtor's allowance under the above named act.—[Ed.]

bailiffs. These detain in their houses (properly enough denominated spunging-houses), at an enormous expense, prisoners who have money. I know there is a legal provision against this oppression; but the mode of obtaining redress (like that of recovering the groats) is attended with difficulty: and the abuse continues. The rapine of these extortioners needs some more effectual and easy check: no bailiff should be suffered to keep a public house; the mischiefs occasioned by their so doing, are complained of in many parts of the kingdom.[1]

Here I beg leave to mention the hard case of prisoners confined on exchequer processes; and those from the ecclesiastical courts: the latter are excluded from the privilege of bail; and the former, generally, from the benefit of insolvent acts.

Felons have in some gaols two pennyworth of bread a day; in some three halfpennyworth; in some a pennyworth; in some none: the particulars will be seen hereafter in their proper places. I often weighed the bread in different prisons, and found the penny loaf seven ounces and a half to eight ounces, the other loaves in proportion. It is probable that when this allowance was fixed by its value, near double the quantity that the money will now purchase, might be bought for it:[2] yet the allowance continues unaltered: and it is not uncommon to see the whole purchase, especially of the smaller sums, eaten at breakfast; which is sometimes the case when they receive their pittance but once in two days: and then on the following day they must fast.

This allowance being so far short of the cravings of nature, and in some prisons lessened by farming to the gaoler, many criminals are half starved: such of them as at their commitment were in health, come out almost famished, scarce able to move, and for weeks incapable of any labour.

Many prisons have no water. This defect is frequent in bridewells, and town gaols. In the felons' courts of some county gaols there is no water: in some places where there is water, prisoners are always locked up within doors, and have no more

[1] By the statute thirty-second George II it is enacted, that "No sheriff, bailiff, etc. . . . shall convey any person arrested . . . to any public victualling or other drinking-house . . . without the consent of the person so arrested." Now if the bailiff himself keeps a public house, this seems to preclude the debtor's choice; he must go to a public house, or directly to gaol.

[2] In 1557, a penny loaf of wheat bread weighed twenty-six ounces. In 1782, the weight of a twopenny white loaf, at London was eighteen ounces; at Edinburgh, nineteen ounces and a half; at Dublin, sixteen ounces; in September 1783, at London, one pound three ounces; and the 4th of August, 1783, in Dublin, only eleven ounces three drachms.